



Academic Misconduct Policy

Policy no:	2.1
Version date	May 2026
Approved by	Academic Board
Policy Group	Academic Management
Version number	V8
Next review due	May 2027
External reference points	- Office of the Independent Adjudicator for Higher Education's (OIAHE) Good Practice Framework for Handling Complaints and Academic Appeals - Equality Act 2010 - Data Protection Act 2018 - The UK General Data Protection Regulation (UK GDPR)

Version Control			
Previous Version	New Version	Date	Update/Notes
V5.1 (21-06-24)	V6	15-04-25	- Added version control table. - Updated the section on Turnitin, Similarity Scores and Artificial Intelligence. - Replace the Head of HE with the Programme Leader in some situations - Amended the flow chart at the end of the policy.
V6	V7.1	28-05-25 (Chair's Actions)	- The words 'academic malpractice' and 'maladministration' have been added to 'Purpose.' - The membership of the AMP has been amended. There is no Student Representative. - A section has been added on Informing the Awarding Organisation
V7.1 (28-05-25)	V8	14-05-26	- Annual review, some typos corrected eg AMP not AMB.

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1. Purpose

Trent Education Centre (TEC) places a strong emphasis on academic integrity and expects all students to adhere to the ethical principles of the academic community. Systems are in place to prevent and address instances of academic dishonesty to uphold the quality of education. The Academic Misconduct Policy and Procedures outline the rules for identifying and addressing academic misconduct, which includes academic malpractice and maladministration, providing guidance for students and staff on how to prevent it and the possible consequences if it occurs. It also details the steps to be taken when misconduct is alleged, and notes that non-academic conduct issues will be addressed through other relevant policies. TEC reserves the right to adjust the procedure for fairness or safety reasons, while also staying compliant with legal obligations such as the Equality Act 2010, Data Protection Act 2018, and the UK General Data Protection Regulation (UK GDPR).

The policy defines different forms of misconduct, explains how concerns are reported and investigated, and lists potential penalties. The policy also emphasises the importance of informing relevant awarding organisations immediately if there is a case of potential academic misconduct.

2. Scope

This policy applies to all TEC Students who have enrolled on any of the TEC courses working towards any or no qualifications. All students are required to refrain from any behaviour that constitutes Academic Misconduct as outlined in this policy, which is not limited to specific times or locations, or only to activities related to TEC. Academic Misconduct is viewed as identical to Academic Malpractice or Maladministration by TEC. TEC differentiates, however, between Academic Misconduct and poor academic practice, attributing the latter to inexperience or lack of knowledge. This distinction is considered a matter of academic judgement. Students displaying poor academic practice will receive guidance and academic support as opposed to penalties, which will be issued according to the procedures in this policy to students found to have wilfully committed academic misconduct.

3. Examples of Academic Misconduct

Academic misconduct refers to any deliberate action taken by a student, to gain an unfair benefit in an assessment. These actions can include cheating, copying someone else's work without proper citation (plagiarism), working together with others when collaboration is not allowed, or any other attempts to gain an advantage in graded work. This can apply to different types of assessments including written assignments, online tests, presentations, oral exams, portfolios for recognising prior learning, and standard exams. Examples of academic misconduct include:

- Breaches of this policy or other relevant regulations when submitting assignments for assessments.
- Plagiarism: Using someone else's work, artefacts, designs, ideas, words or otherwise without proper citation or acknowledgment.
- Cheating in academics refers to engaging in dishonest or unfair practices to gain an advantage, such as falsifying information or using unauthorised resources or assistance during exams or assignments.
- Presenting content generated by Artificial Intelligence (AI) as one's own original writing.
- Helping or trying to help another student in TEC gain an unfair academic advantage, referred to as collusion.
- Impersonation involves someone sitting an exam or assessment on behalf of another person, by pretending to be that person.
- Using or obtaining someone else's work and presenting it as your own, either by purchasing it or through other means.
- Fabrication or falsification of data, making up research findings or altering data to support a desired outcome.
- Non-compliance with any instructions or penalties in relation to academic misconduct may result in additional penalties.

4. Academic Misconduct Panel

All allegations of academic misconduct are dealt with by the Academic Misconduct Panel (AMP) which includes the following members:

- Head of Compliance (Chair)
- Head of Operations (Secretary)
- Programme Leader

The AMP reports to the Assessment Committee on all cases of Academic Misconduct. The Secretary to the Academic Misconduct Panel is responsible for maintaining records of proceedings and outcomes of any allegation of misconduct cases. If there is an Academic Misconduct allegation against any students, the AMP will:

- Consider all the available evidence and decide if academic misconduct has occurred
- Inform the student(s) of the decision
- Make sure the student is aware of their right to appeal against the decision and inform them about the **Appeals Procedures** provided with this policy below.
- Determine what if any penalty should be imposed based on those in the Penalties for Academic Misconduct Table below

5. Reporting Concerns

If a student is suspected of Academic Misconduct, the issue should be brought to the attention of the Programme Leader for investigation. If the issue is found to be outside the scope of this policy, the suspected misconduct may be referred to another policy or procedure. Assessors will monitor similarity scores of all student work through Turnitin checking software. Any evidence of high similarity scores will be referred to the relevant Programme Leader for investigation. Tutors may identify indicators that suggest possible use of Artificial Intelligence (AI). Where concerns arise, the student will be invited to a viva to demonstrate authorship. Any student suspected of using Artificial Intelligence will be invited by the Tutor and the Head of Programme to attend an interview (Viva) where they will be required to demonstrate, through answers to questions, that they have written the work themselves and not relied upon AI. Students who have plagiarised or used AI will be penalised according to the penalties for academic misconduct provided in the table below.

Awarding body/organisation regulations will be followed by TEC regarding opportunities for penalised students to resubmit work and the maximum grade which may be assigned.

If the Programme Leader believes that Academic Misconduct has occurred, an AMP meeting will be called within 7 days to make an initial decision about the case.

6. Decision of the AMP

When making its decision, the AMP will be guided by the table of Penalties for Academic Misconduct below. The AMP may make one of the following decisions:

- If it is found that poor academic performance has occurred rather than misconduct, the allegation will be disregarded. The student will receive a warning about the importance of adhering to academic standards and will be provided with resources for support and information on how to improve their academic performance in the future.
- Appoint an Investigating Officer (IO) to gather all evidence and determine whether or not academic misconduct has occurred
- Issue a warning to the student and not issue a penalty if there is no previous record of the student under investigation committing Academic Misconduct
- If the situation is deemed more severe, which could involve a student with past instances of Academic Misconduct, apply sanctions based on the Penalties for Academic Misconduct Table.

7. Investigation

The Investigating Officer (IO) will contact the student who has allegedly committed academic misconduct. This will occur after any interview conducted by the Programme Leader to establish whether the student has plagiarised or used Artificial Intelligence or committed any other form of academic misconduct.

The IO will inform the student about the allegation against them, the evidence they have, the steps that will be taken and provide a copy of this policy. The IO will inform the student that the investigation may lead to penalties regardless of whether or not the student participates or attempts to defend themselves against the allegation. The IO will provide the student facing the allegation with seven days to respond to any questions, provide evidence in their defence or to meet the IO for an interview as part of the investigation.

The IO will keep written records of all meetings and provide copies of meeting minutes to all those who take part including the student who is alleged to have committed academic misconduct. When the IO completes the investigation, they will submit a report to the AMP with any recommendations.

After considering the IO report, the AMP will decide on the action to take by selecting from the items listed above in the section on Decision of the AMP. In cases where there is still uncertainty, the AMP will call an Academic Misconduct Hearing.

8. Hearings

The AMP has the power to call a hearing to review all the evidence and interview the student and other parties involved, in order to decide whether or not a student or multiple students have committed poor academic practice or misconduct. A hearing will be held and the student invited to attend seven days before the hearing. The AMP Chair or delegated person such as the AMP Secretary will invite the student to attend the hearing and provide the student with an agenda. The student will be permitted to bring someone to the hearing with them for support. The IO will provide a report on the investigation and all the evidence supporting the allegation. The student will be invited to submit any report or evidence of their own in their defence. Both the IO and the student will be able to call witnesses to the AMP to give evidence.

This submission should outline the student's perspective on the allegations made against them, addressing any evidence presented by TEC and providing any relevant documentation or information to support their case. The submission should also address any mitigating factors that the student believes should be taken into consideration by the AMP.

The student should ensure that their submission is clear, concise, and focused on addressing the specific allegations of Academic Misconduct. They should avoid irrelevant information or arguments that do not relate to the case under investigation.

If a student fails to attend a hearing without having an agreed alternative date beforehand, the hearing will proceed without them. The AMP will do what it can within reason to accommodate the student so that they are able to attend the hearing.

The AMP will reach one of the following decisions at the end of the hearing:

- Find that no academic misconduct has taken place or that the evidence cannot adequately prove it has taken place and dismiss all allegations
- Find that the student is in breach of this policy by committing academic misconduct and proceed to the academic misconduct table below in order to select an appropriate penalty or warning
- Find that the student has not wilfully committed academic misconduct but poor academic practice instead and refer the student to academic support services
- Recommend that the case be passed to another disciplinary procedure not covered under this policy.

The student and all relevant staff will be informed by email about the decision of the AMP within seven days. If the student disagrees with the decision of the AMP, they may lodge an appeal against the decision to the Academic Misconduct Review Panel (AMRP) described below.

9. Penalties for Academic Misconduct Table

The table below shows what penalties may be imposed upon a student according to the degree of Academic Misconduct the student has committed. Note: The Plagiarism or AI score value used, and penalty applied, will be as defined by the awarding body/organisation. In other cases, the values and penalties given below will be used.

Type of Misconduct	Examples of Academic Misconduct	Penalty
The first offence It is decided that this was poor academic practice only such as poor in-text citations and referencing	Plagiarism or AI score of 10%-30% of submitted work	An informal warning and the student must attend a development activity through TEC's additional support and personal tuition services
The second minor offence	Plagiarism or AI score of 10%-30% of submitted work	Assignment must be resubmitted, with mark capped at a Pass
The first medium offence	High similarity or AI score of 30%-50% of submitted work	Student must provide an explanation to the Tutor/Assessor before being permitted to resubmit. Mark capped at a Pass
A second medium offence	Plagiarism or AI score of 30%-50% of submitted work	Student may be suspended by the AMP. If permitted to resubmit, their mark is capped at a Pass.
A first major offence	Plagiarism or AI score of 50%-100% of submitted work Evidence of paying an Essay Mill Submitting someone else's work as your own Gaining unauthorised access to assessment materials	The student will be required to resubmit the assessment, with the mark capped at a Pass. Additional disciplinary action may be taken under the Student Disciplinary Policy.
A second major offence	Plagiarism or AI of 50% - 100% of work Evidence of paying an Essay Mill Submitting someone else's work as your own	Any recommendation for expulsion will be referred to the Student Disciplinary Panel for a final decision.

10. Appeals to the Academic Misconduct Review Panel (AMRP)

Students who do not accept the decision taken by the AMP may appeal to the Academic Misconduct Review Panel (AMRP).

The AMRP includes the following members:

- Executive Principal (Chair)
- Head of Higher Education
- Head of Quality

If either member of the AMRP is unavailable, other members of the Academic Board may be invited by the Secretary to form the AMRP. They should not be members of the Academic Misconduct Panel (AMP). This panel will consider the student's appeal and may request additional information or evidence from both the student and the AMP before deciding.

The following are examples of acceptable grounds for appealing to the AMRP:

- New evidence has arisen that will prove the student has not committed academic misconduct or their misconduct is not as bad as it originally appeared.
- There is evidence that the assessor, verifier, moderator, or external examiner were biased against the student
- An irregularity occurred in the assessment process
- The decision and especially the penalty are too harsh and without balance

The student should appeal to the AMRP in writing no more than 14 days after the decision of the AMP, explaining why they are appealing. Late appeals may be ignored by the AMRP. The student should submit any evidence for mitigating circumstances it may wish the AMRP to consider. After reviewing the appeal, the AMRP will either:

- Ask the student to attend a meeting
- Find that the student has not committed academic misconduct and dismiss the case
- Find that the student has committed academic misconduct and uphold the decision of the AMP
- Find that the AMP has given the student an appropriate penalty
- Find that the penalty given to the student is too harsh and reduce it

The student will be informed about the AMRP decisions in writing within seven days after the review. The AMRP decision is final. The student will be given a completion of procedures letter so that they can appeal to an external body (OIAHE) if they wish.

11. Informing the Awarding Organisation

At the same time as the AMP is convened as noted above, the relevant awarding organisation will be informed by a senior member of TEC staff, that a case of potential Academic Misconduct is being investigated by the AMP.

In particular, academic staff are required to notify a senior member of TEC staff immediately if there is any potential malpractice or maladministration, especially if there is a potential breach in confidentiality of assessment materials. A senior member of TEC staff includes the Programme Leader, Head of Higher Education, Head of Compliance, Head of Quality or Executive Principal.

If any staff member believes that the integrity of assessment materials has been compromised, they must immediately inform a senior member of staff who will immediately inform the awarding organisation that assessment materials may have been compromised.

The relevant awarding organisation will be updated with any findings of an AMP investigation, hearing, or appeal to the AMRP and its findings.

12. The Office of the Independent Adjudicator (OIAHE)

The Office of the Independent Adjudicator for Higher Education (OIAHE) may review decisions taken by TEC with regard to Academic Misconduct, student complaints, and appeals. Students will be able to access the OIAHE Scheme once TEC delivers higher education courses that fall within the OIA's remit. This will only occur once TEC has attained registration with the Office for Students (OfS).

Students may access information about the OIAHE here <http://www.oiahe.org.uk/>. Alternatively, they may call OIAHE on 0118 959 9813 or email using enquiries@oiahe.org.uk. If relevant and required, students will be provided with a Completion of Procedures Letter (CoP) and information about how to apply to the OIAHE for a review of a decision taken under this procedure.

13. Appendix: Academic Misconduct Process

